

		ground that it is barred by the statute of limitations set forth in Code of Civil Procedure section 337(a). In her Reply, Petitioners cite to <i>Cal-Vada Aircraft, Inc. v. Superior Court</i> (1986) 179 Cal.App.3d 435, 448 ("<i>Cal-Vada</i>") for the proposition that "[o]n summary judgment limited to conforming the instrument to the Stipulation, the court may grant summary adjudication striking provisions not contained in the Stipulation without reaching a disputed accrual date." (ROA 189, Reply, 4:11-14.) <i>Cal-Vada</i> makes no such holding; such case does not address any issues regarding conforming an instrument to a stipulation, striking provisions of a stipulation, or an accrual date. Nonetheless, Code of Civil Procedure section 337(a) applies to a cause of action for breach of a written agreement and, thus, appears to be inapplicable to the request to modify the Trust. Petitioners' reliance on <i>Machado v. Myers</i> (2019) 39 Cal.App.5th 779, 792, and <i>Ames v. Paley</i> (2001) 89 Cal.App.4th 668, 670, is also misplaced. Such cases dealt with whether a court's judgment properly conformed to the parties' settlement agreement. The issue before this court is whether certain provisions of a trust should be deleted because they were not specifically included in the settlement agreement which required the creation of the trust. The court cannot resolve such issue by simply determining whether the created trust "conforms" to the settlement agreement when the settlement agreement includes only a few mandatory terms for the trust. "[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law." (<i>Aguilar v. Atl. Richfield Co.</i>, (2001) 25 Cal.4th 826, 850.) The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. (<i>Id.</i>) A prima facie showing is one that is sufficient to support the position of the party in question. (<i>Id.</i> at p. 857.) Petitioners have not met his burden. Counsel for Petitioners is ordered to give notice of ruling.
01463604	Clute – Trust	TENTATIVE RULING Case: Clute – Trust 01463604

		Calendar No.: 5 Date: 06/03/2026
		[Motion Type] MOTION TO QUASH SUBPOENA (ROA 14) Respondent Randall R. Clute ("Respondent") specially appears to move to quash the subpoenas issued by Petitioner Craig C. Clute ("Petitioner") to T. Rowe Price Investment Services, Inc. and Wells Fargo, N.A. <u>Motion</u> On or about 9/17/25, Petitioner served subpoenas to T. Rowe Price Investment Services, Inc. and Wells Fargo, N.A. (ROA 19, Coleman Decl., ¶ 2, Ex. 1 and 2.) Efforts to meet and confer were unsuccessful, resulting in this motion. (Id. at ¶ 3, Ex. 3.) Respondent moves to quash the subject subpoenas on the ground that Petitioner lacks standing to petition for an accounting of a revocable trust. The California Supreme Court in <i>Williams v. Superior Court</i> (2017) 3 Cal.5th 531 (<i>Williams</i>) held that "the way to raise lack of standing is to plead it as an affirmative defense, and thereafter to bring a motion for summary adjudication or summary judgment, not to resist discovery until a plaintiff proves he or she has standing." (<i>Id.</i> at p. 558-559.) "To show the merits of one's case has never been a threshold requirement for discovery." (<i>Id.</i> at 558.) The Discovery Act permits "any party" to conduct discovery. (Code Civ. Proc. § 2017.010.) Consistent with the Supreme Court's holding in <i>Williams</i>, the Court of Appeal for the Fourth District recently noted that objections based on lack of standing are properly raised in a dispositive motion, not in a discovery responses. (<i>Masimo Corp. v. The Vanderpool Law Firm, Inc.</i> (2024) 101 Cal.App.5th 902, fn. 7.) Respondent raised a privacy objection to the subpoenas for the first time in his Reply to this motion. "[P]oints raised in a reply brief for the first time will not be considered unless good cause is shown for the failure to present them before. [Citations.]" (<i>Balboa Ins. Co. v. Aguirre</i> (1983) 149 Cal.App.3d 1002, 1010.) The general rule of motion practice is that new evidence is not permitted with reply papers, which "is based on the same logic applied in the appellate courts, specifically, that '[p]oints raised for the first time in a reply brief will ordinarily not be considered

		because such consideration would deprive the respondent of an opportunity to counter the argument.’ [Citations.]” (<i>Jay v. Mahaffey</i> (2013) 218 Cal.App.4th 1522, 1537.) Here, no good cause is shown for failure to raise this argument in Respondent’s moving papers, and Petitioner has not had an opportunity to reply. Nor is the argument strictly responsive to any argument made for the first time in opposition. The Court therefore declines to consider this argument. For the foregoing reasons, the motion to quash subpoenas is DENIED. Counsel for Petitioner is ordered to give notice of this ruling.
00984617	Ivicevic – Conservatorship	TENTATIVE RULING Case: Ivicevic – Conservatorship 00984617 Calendar No.: 7 Date: 06/03/2026 MOTION TO BE RELIEVED AS COUNSEL (ROA 308) Attorney Kyle A. Patrick seeks to be relieved as counsel for Craig Ivicevic. An attorney’s right to withdraw as counsel is conditioned upon compliance with California Rules of Court, Rule 3.1362. Counsel has fully complied. The court finds good cause to relieve Kyle A. Patrick as counsel for Craig Ivicevic. The motion is GRANTED. Withdrawal is effective upon filing the proof of service of the signed Order Granting Attorney’s Motion to Be Relieved as Counsel.
01459618	Ramirez – Probate	TENTATIVE RULING Case: Ramirez – Probate 01459618 Calendar No.: 9 Date: 06/03/2026